I.R.E. 701. Opinion Testimony by Lay Witness.

Idaho Rules of Evidence Rule 701. Opinion Testimony by Lay Witnesses.

If a witness is not testifying as an expert, testimony in the form of an opinion or inference is limited to one that is:

(a) rationally based on the witness's perception;

(b) helpful to clearly understanding the witness's testimony or to determining a fact in issue; and

(c) not based on scientific, technical, or other specialized knowledge within the scope of Rule 702.

(Adopted March 26, 2018, effective July 1, 2018.)

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